



ESTATE
LAND

Membership Agreement.

Growth Plan



Estate Land onboards realtors across the United States and delivers double-verified seller leads — exclusive to you, straight to your CRM, with appointments set. Not shared. Not recycled.

Guaranteed Results

ESTATE LAND REFERRAL AGREEMENT

Professional Match Program

PARTIES

This Referral Agreement ('Agreement') is made, entered into, and effective as of today (the 'Signing Date') by and between the undersigning Agent/Broker ('Agent/Broker') licensed in the state mentioned in the onboarding form, and **Estate Land LLC**. Agent/Broker and Estate Land are each a 'Party' and are collectively referred to as the 'Parties' to this Agreement.

ACKNOWLEDGMENT OF TERMS

By signing the following agreement, the undersigned party hereby acknowledges and agrees that they have read and fully understand all the terms and conditions set forth herein and agree to be bound by them in their entirety. The undersigned further acknowledges that any information they provide at the end of this document is true, accurate, and complete to the best of their knowledge.

The undersigned party acknowledges that any inaccurate, incomplete, or false information provided in this agreement may result in the termination of the agreement or legal action. The undersigned party understands that they have an ongoing obligation to update any changes in their provided information to the other party in writing promptly.

The undersigned party agrees to indemnify, defend, and hold harmless the other party and its agents, representatives, employees, affiliates, successors, and assigns from and against any claims, damages, liabilities, costs, and expenses arising from or related to any inaccurate, incomplete, or false information provided by the undersigned party.

The undersigned party acknowledges that they have had the opportunity to seek independent legal advice before signing this agreement and that they have read, understand, and agree to all of the terms and conditions set forth herein, and that this agreement constitutes a binding legal agreement between the parties.

RECITALS

Estate Land is a digital marketing company partnered with multiple brokerages, each holding a real estate license in their respective states but does not engage in representing consumers in real estate transactions. Our platform is used by brokers, agents, homebuyers, and home sellers to facilitate real estate transactions collaboratively and transparently. Homebuyers and home sellers who want to use our platform are paired with brokers and agents with whom we have a Referral Agreement as part of our Professional Match Program (the 'Program').

1. Services Provided

Under the **Growth Package**, Estate Land agrees to provide the Agent/Broker with both buyer and seller leads within the agreed-upon geographical areas. The parties agree that the service

provider (hereinafter referred to as "Estate Land") will deliver up to 5 referrals per month to the agent/broker. It is understood that the quality and quantity of leads may vary based on market conditions and other factors.

2. Exclusivity; Non-Exclusivity

Broker/Agent understands that leads will be exclusive to Broker and Agent. Although the lead may itself have other options Estate Land does not bind any contract with the lead itself. However, exclusivity may depend on various other measures to ensure a lead is responded to as quickly as possible and secured as a client of a Broker or Agent in the Program.

3. Referral Acceptance

When Estate Land informs a Broker or Agent that a lead is available, the Broker or Agent will be allowed to either accept or deny the lead based on the following understandings and agreements:

a) Acceptance: All leads delivered to Brokers and Agents are considered accepted leads upon delivery ("Lead Acceptance"), unless one of the following circumstances applies:

b) Denial: Broker or Agent has the right to deny a lead by providing written notice to Estate Land within (48-72) hours of Lead Acceptance due to the following reasons:

- If a lead upon contact is not looking to buy or sell within 6 to 9 months.
- If a lead is not exclusive or already under contract with any other agent/broker.
- If a lead is not responding to your calls/texts despite multiple attempts.
- If a lead is not within your designated territory.
- If a lead is already your existing client.

Note: Denying a Lead does not absolve the Broker of its obligations in the Compensation section of this Agreement, should the Broker and/or Agent end up representing the Referral within the following twelve (12) months (the "Referral Coverage Period").

c) Existing Customer or Client: If the Broker or Agent can provide documented proof within Twenty-four (24) hours of Lead Acceptance that the Lead was already under an agency contract with the Broker at the time of Lead Acceptance or had been in communication with the Broker and Agent of their own accord within fifteen (15) days before Lead Acceptance, then Broker shall be relieved of its obligations in the Compensation section of this Agreement.

4. Compensation

a) Membership Fee: Agent/Broker agrees to an annual Membership fee of **\$549** to join the Estate Land network. This fee can only be deducted from the Estate Land commission fee portion by the Agent/Broker who closes on Estate Land lead(s).

b) Commission Fees: Agent/Broker agrees to pay Estate Land **15%** of the Net Commission for any real estate brokerage services of any real estate transactions of Estate Land provided leads (including subsequent purchase, sale, or lease commissions on any property) involving the lead during the lead Coverage Period.

c) Net Commission: The amount the Agent/Broker is eligible to receive as stated in agency agreements and closing document(s), including any bonuses paid. Net Commission does not consider any discounts or commission reduction a Broker or Agent may extend to a lead; it is not necessarily the commission that the Broker/Agent receives.

d) Fee Deduction/Credit back: Agent/Broker may deduct the one-time membership fee from the first closing of Estate Land provided lead(s).

e) 12-Month Closing Guarantee: Estate Land guarantees that at least 1 transaction will close within twelve (12) months of the Agent/Broker's active participation in the program. If no transaction occurs, the Agent/Broker may request an equivalent lead replacement, subject to Estate Land review and verification of compliance with program requirements.

f) Refund Policy: Refund will only be granted under Section (e). Dissatisfaction, lack of effort, or change of mind do not qualify. All Issues must be reported via live call or email within 24 hours of lead receipt for consideration.

5. Term and Termination

a) Term and Termination: This Agreement shall become effective on the Effective (Signing date) and will remain in effect for 12 months following the Effective Date and will renew for successive twelve (12) months. Estate Land or Agent/Broker may terminate this Agreement, with or without cause, at any time upon thirty (30) days before written or emailed notice of termination to the other party. Agent/Broker must complete the cancellation form and submit it to Estate Land to process the cancellation and reconfirm it with a cancellation confirmation number.

b) Effect of Termination: Termination of this Agreement by either party shall have no impact on any compensation, credits or discounts, or other amounts owing or payable, or that are later earned because of a Lead Acceptance by Broker which occurred before the termination of this Agreement.

6. Governing Law

This Agreement shall be governed by and construed under the laws of the United States, without regard to its conflict of laws principles.

ACKNOWLEDGEMENT

IN WITNESS WHEREOF, THE Parties hereto have executed this Agreement effective as of today (the "Signing Date").

Signature: _____

Name: _____

Title: _____

Address: _____

License #: _____

Email: _____

Phone: _____

Date: _____

Initials: _____



AGENT SERVICE STANDARDS

I as an Agent affiliated with Broker, acknowledge receipt of the **Estate Land Membership Agreement** and further acknowledge that I have read and understand the Agreement and agree to be bound by the terms thereof. I agree to maintain the following service level standards while working with Estate Land:

While Working with Leads I Will:

- Honor the commission rates and services identified in the leads I have claimed on Estate Land platform.
- Respond as quickly as possible to Leads via email, phone, or text, and within Estate Land Platform.
- Set clear expectations of my availability; and if I'm unavailable for any period lasting longer than one business day, I will notify Leads and Estate Land.
- Notify Estate Land immediately if the Lead would like to work with a different agent.
- Attempt to sign an agency agreement with the Lead as soon as possible.
- Use and embrace the Estate Land Platform.

While Communicating and Collaborating with Estate Land I Will:

- Respond as quickly as possible to representatives via email, phone, or text, and from within Estate Land Platform.
- Provide Estate Land with updates every seven (7) days until I've secured a Lead as a client.
- Notify Estate Land if I have determined that a Lead has decided not to use my Services or have reason to believe the Lead may use another agent's services.
- Assist Estate Land with executing EXHIBIT– Commission Disbursement Agreement– with my Broker, upon Leads entering a mutually accepted contract; and delivering it to the title/escrow company.
- Be honest and transparent about my interactions with Leads.

While Using the Estate Land Platform I Will:

- Provide feedback and suggestions to Estate Land representatives about the Platform.
- Honestly and candidly complete surveys about my, and leads', experiences and opinions about the Platform.
- Encourage other cooperating agents to use Estate Land when submitting, countering, accepting, or declining offers and counteroffers.
- Enter all transactions, Leads, and the designated Estate Land Concierge representative in the Platform before, or upon entering, an agency agreement.
- For listings, instruct all cooperating buyer agents to schedule showings (when available) and submit offers via the Platform.
- Update the Platform with any mutually accepted contracts and/or other executed agreements relating to the lead's transaction within twenty-four (24) hours.
- Cooperate with my assigned Estate Land Concierge to ensure the Platform is always up to date.

Compliance:

I Understand I Will Stop Receiving Memberships if I:

- Charge Leads additional or administrative fees at closing that are not disclosed to Estate Land, prior to receiving Leads.
- Do not notify Estate Land of any change to my real estate license or affiliation with Broker.
- Violate or fail to fulfill the requirements of this Acknowledgement or the Agreement of which it is

